

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza
Criminal Miscellaneous Case No.40796 of 2012.

Md. Arif Gaffar

.....Accused-Petitioner

-Versus-

The State

... Opposite Party

Mr. M. Ali Murtaja, Advocate

.... For the accused-petitioner

Mr. Touhidul Hasan, Advocate

... for the opposite party No.2

Heard and Judgment on: 28.02.2024.

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure the Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 25.07.2011 passed by the learned Additional Sessions Judge, 2nd Court, Khulna in Criminal Revision No.111 of 2008 allowing the revision after setting aside the order dated 31.03.2008 passed by the Chief Judicial Magistrate, Khulna in G.R. No.10 of 2008 corresponding to Khulna P.S. Case No.10 dated 07.01.2008 under sections 420/406/462A/462B/409 of the Penal Code, now pending in the Court of learned Chief Judicial Magistrate, Khulna should not be quashed and/or such other further order or orders as to this Court may seem fit and proper.

Facts in short are that the Manager of the City Bank, Khulna Branch lodged an ejahar on 07.01.2008 with Khulna P.S. alleging that during the period from 15.06.1995 to 09.12.2002 co accused Ahammad Ali was the Manager of above Bank and in order to derive unlawful gains for himself and to give illegal benefits to the petitioner he allowed the petitioner

namely M/S Gaffar Products Ltd and M/S Macca Poultry Feeds Ltd. to open 35 letters of credit without approval of the higher authority of the Bank. Discharging the relevant rules and procedure after arrival of the goods he handed over shipping documents to the petitioner without making a Payment Against Documents (PAD) and deposit of above money. The petitioners after unlawful receipt of shipping documents obtained delivery of goods and sold out the same.

On conclusion of investigation Police submitted charge sheet against co-accused Ahammad Ali but did not sent up the petitioner for trial. The learned Judicial Magistrate accepted above police report and took cognizance against co-accused Ahammad Ali and discharged the petitioner.

Challenging the legality and propriety of above order of the learned Judicial Magistrate the informant preferred Criminal Revision No.111 of 2008 to the learned Session Judge which was heard by the learned Additional Sessions Judge, 2nd Court, Khulna who allowed above revision.

Being aggrieved by above judgment and order of the learned Additional Sessions Judge dated 25.07.2011 accused No.2 Md. Arif Gaffar moved to this court and obtained this rule.

Mr. M. Ali Murtaja learned Advocate for the petitioner submits that for the realization of above outstanding money above Bank has already instituted Artha Rin Adalat Case No.68 of 2006 against the petitioner which is pending for trial. As far as the receipt of the shipping documents from co-accused Ahammed Ali is concerned the petitioner being not an employee of above Bank he had no responsibility in this regard and if any violation of banking rules and practice were at all committed that was done by co-accused Ahammad Ali who was the manager of above Bank and for the irregularities committed by an officer of the Bank the petitioner cannot be held responsible. The learned Additional Sessions Judge failed to appreciate above aspect of the case properly and most illegally allowed the

Criminal Revision and directed the petitioner to stand trial which is not tenable in law.

Mr. Touhidul Hasan learned Advocate for opposite party No.2 submits that the ejahar of this case was lodged by an authorized officer of the City Bank Ltd and specific mentions were made as to the commission of fraud by a Manager of above Bank namely co-accused Ahammad Ali in collaboration with the petitioner, who was a client of the Bank. The petitioner unlawfully obtained shipping documents from co-accused Ahammad Ali without creation of PAD and without payment of the outstanding money to the Bank. This specific allegation was not denied by the petitioner. The informant was not notified by the investigating officer as to the submission of the police report and the informant could not submit any naraji against above flawed police report. The learned Additional Session Judge has rightly appreciated the materials on record and lawfully allowed the revision which calls for no interference.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

Undisputedly the petitioner Bank issued 35 Letters of Credit in favour of the petitioner for import of goods, as mentioned with necessary details at paragraph No.2 of the ejahar. It is also not disputed that after arrival of the goods to the designated port the petitioner obtained shipping documents from co-accused Ahmmad Ali and received delivery of above goods. It is also not disputed that the petitioner received above shipping documents without creation of Payment Against Document (PAD) and deposit of above money to the Bank.

It has been alleged that co-accused Ahammad Ali the ex-Manager of above bank fraudulently handed over above shipping documents to the petitioner for receipt of delivery of goods for unlawful gains. On conclusion of the investigation the investigating officer found truth in the allegation that without creation of PAD and deposit of money to the Bank co-accused

Ahammad Ali handed over shipping documents to the petitioner who received delivery of goods. Above offence of fraud was allegedly masterminded by co-accused Ahammad Ali but the petitioner was the ultimate beneficiary since he obtained shipping documents without PAD and received delivery of the goods. The provision of section 462B of the Penal Code, 1860 makes the petitioner liable jointly with co-accused Ahammad Ali for commission of above cheating. Above provision of the Penal Code, 1860 is reproduced below:

“whoever fraudulently receives any benefit from a banking company in the course of any banking transaction shall be punished with imprisonment of either description for a term which may extend to two years or with fine or with both”.

The learned Advocate for the petitioner lastly submits that subsequently the petitioner created PAD and made partial payment of above money to the Bank and the Bank has filed an Artha Rin Suit for recovery of the outstanding money. Above submission of the learned Advocate prima facie mounts to a confession as to the commission of above mentioned offence.

In above view of the facts and circumstances of the case and materials on record we are unable to find any illegality in the impugned judgment and order passed by the learned Additional Sessions Judge allowing above Criminal Revision nor we find any substance in this petition, as such, the rule issued in this connection deserves to be discharged.

In the result, the rule is discharged.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

Md. Kamrul Islam
Assistant Bench Officer